

Akhilesh Patel v. State of U.P. Thru. Collector Pratapgarh & Others

High Court of Judicature at Allahabad (Lucknow Bench) · Division Bench · 24 August 2023 · 2023:AHC-LKO:56598-DB · WRIT - C No. 6402 of 2023 · **Writ disposed of; petitioner may represent under Clauses 4.3(g) and (h) to the Executive Engineer, who shall verify the will and partition and direct payment of the electricity dues in accordance with law**

HEADNOTE

Where one of two brothers says that a will dated 13 November 2003 legally sub-divided their father's house, and that Clauses 4.3(g) and (h) of the U.P. Electricity Supply Code, 2005 limit him to half the outstanding electricity dues while the department demands the whole, the Lucknow Bench will not itself apportion the dues. The Corporation not objecting, the petitioner may, within two weeks, represent under those clauses to the Executive Engineer (Prescribed Authority), Pratapgarh. That authority shall call both brothers, verify the will including the partition, decide in accordance with law and direct payment of the dues, within four weeks of production of the certified copy with the representation. A brother who, after notice, does not appear may be proceeded against ex parte. Whether the will effected a legal sub-division, and what each brother must pay, was left open.

FACTUAL SUMMARY

Akhilesh Patel filed Writ-C No. 6402 of 2023 at the Lucknow Bench against the State of U.P. through the Collector, Pratapgarh, and others, over electricity dues on his late father's house. He relied on a will dated 13 November 2003, which he said had split the house between him and his real brother, Brijesh Patel. The electricity department was asking him to pay the entire dues. He claimed the house stood legally sub-divided, so that Clauses 4.3(g) and (h) of the U.P. Electricity Supply Code, 2005 made him liable only for half.

After adjournments on 28 July and 2 August 2023, Brijesh Patel was impleaded as respondent no. 5 on 9 August 2023 and allowed to be served by dasti. On 24 August 2023 the affidavit of service was taken on record; the notice had returned with a noting that he refused it. Counsel for the Corporation did not object to the Executive Engineer (Prescribed Authority), Pratapgarh, deciding acceptance and segregation under Clause 4.3 by reference to the will. The writ was disposed of by permitting that representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(g)

Will said to sub-divide a house — share of outstanding dues left to the Executive Engineer

QUESTION

Where a son invokes Clauses 4.3(g) and (h) and a will said to have legally sub-divided the house, and asks to be held liable for only half the outstanding electricity dues, will the writ court itself apportion those dues?

HOLDING

No. On the Corporation's statement that it had no objection, the petitioner was permitted to represent under Clauses 4.3(g) and (h) before the Executive Engineer (Prescribed Authority), Pratapgarh, within two weeks. If he does, that authority shall call both brothers, verify the will including the partition of the property, decide the matter in accordance with law, and direct payment of the electricity dues, within four weeks of production or receipt of the certified copy together with the representation. If either brother fails to appear after service of notice, the authority may proceed ex parte. ¶ [order of 24.8.2023](#)

QUALIFIER

The fraction 'half' is the petitioner's submission. The Court did not find a legal sub-division or fix either brother's share. Counsel for the Corporation framed the reference as a decision on acceptance and segregation under Clause 4.3 through the will.

FLAG The disposing order of 24.8.2023 (Neutral Citation No. 2023:AHC-LKO:56598-DB) is unnumbered. The same PDF contains earlier orders of the same Bench: 28.7.2023 (short adjournment; list on 2.8.2023 as fresh), 2.8.2023 (counsel unable to complete instructions; list on 9.8.2023 in the additional cause list amongst the top ten), and 9.8.2023 (Brijesh Patel impleaded as respondent no. 5; dasti; list on 24.8.2023 amongst the top ten). The cause title on 24.8.2023 still reads 'And 3 Others'. Respondent no. 3 is identified as Executive Engineer (Prescribed Authority), Pratapgarh. The licensee is called 'the Corporation' and 'the electricity department' and is not named. No precedent is cited.

PRINCIPLE TAGS

representation-to-be-decided-in-accordance-with-law

The writ was disposed of by permitting a representation under Clauses 4.3(g) and (h) to the Executive Engineer (Prescribed Authority), Pratapgarh, who must call both brothers, verify the will and the partition, decide in accordance with law, and direct payment of the electricity dues within four weeks of the certified copy and the representation. ¶ [order of 24.8.2023](#)

alternative-remedy-relegation

The Court did not decide whether the will dated 13.11.2003 legally sub-divided the house or whether the petitioner owed half or the whole of the dues. With the Corporation's consent, that enquiry was left to respondent no. 3, who may proceed ex parte if a brother does not appear after notice. ¶ [order of 24.8.2023](#)

arrears-apportioned-pro-rata-on-subdivision

The petitioner invoked Clauses 4.3(g) and (h) on the footing that a will had legally sub-divided the house, so that he owed only a share of the outstanding dues. The Court did not apply a pro-rata split. It required the Prescribed Authority to verify the will and the partition before directing payment. ¶ [order of 24.8.2023](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE WILL DATED 13.11.2003 EFFECTED A LEGAL SUB-DIVISION OR PARTITION, AND WHETHER THAT SEGREGATION STANDS ACCEPTED FOR CLAUSE 4.3

Left to the Executive Engineer (Prescribed Authority), Pratapgarh, after calling both brothers. ¶ [order of 24.8.2023](#)

NOT DECIDED — WHETHER THE PETITIONER IS LIABLE FOR HALF THE ELECTRICITY DUES OR FOR THE ENTIRE DUES OF THE HOUSE

The claim of half liability was counsel's submission under Clauses 4.3(g) and (h). The Court directed a decision in accordance with law and did not adopt that fraction. ¶ [order of 24.8.2023](#)

NOT DECIDED — THE AMOUNT OF THE OUTSTANDING DUES AND THE SUM, IF ANY, EACH BROTHER IS TO PAY

The order records only that dues of the house are pending and directs the authority to direct payment after verification. ¶ [order of 24.8.2023](#)